

II The Duty to Obey and Our Natural Moral Duties

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5 The Problem and Its Significance

IN one sense, of course, there is a very easy answer to the question “Is there a duty to obey the law?” Imposing duties is an important part of what the law is *for*. Legal systems, especially in their criminal law components, specify the duties of those who fall within the relevant jurisdictions, typically backing those assignments of duty with the threat of legal sanction for nonperformance. So, of course, there is (at least normally) a duty to obey the law. But the duty at issue in this easy answer to our question is a *legal* duty, a duty internal to the system of norms that is law. These legal duties are just one of many kinds of duties internal to many kinds of normative systems, from small clubs and associations to societal codes of conduct. All such duties can be referred to as “institutional,” “positional,” or “conventional” duties. The existence of these kinds of duties is a simple function of what is required by the rules or conventions according to which the institutions or organizations operate.

The question to be addressed here, however, has to do not with the existence of such institutional duties (which nobody questions), but rather with their moral weight. Our question is whether or not there is a *moral* duty to discharge our assigned legal duties, and if so, why. We want to know whether there is an external, neutral moral duty (or obligation) to discharge the internal

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duties imposed by law.¹ In the case of a moral duty, its normative force derives from independent moral principles beyond any conventional or institutional “force” that might be thought generated by the simple empirical facts of institutional requirement (according to existing rules) or widespread social expectations for conduct. Our question, then, is why (or whether) one has a moral duty to do what the rules require or what society expects. And on that question, of course, there is room for debate, just as there is room for debate about whether or not it is morally required that we follow the rules of other particular groups that might try to claim our obedience as their due. Institutional and organizational claims are plainly not self-justifying. What, then, is the moral justification for the claim to obedience made by the institutions of a formal domestic legal system?

In the case of many laws, of course, it may seem that the moral requirement to obey the law is every bit as plain as the existence of the external, neutral moral duties that are to explain the duty to obey. For much of the law seems to be devoted simply to enforcing morality. The criminal law prohibitions of (for example) murder, assault, fraud, and theft can be seen as just institutionalizing (and enforcing with the threat of formal sanctions) the parallel moral prohibitions. Much of the body of contract law mirrors the morality of promising, just as some of tort law follows common views of the morality of reparation. But while it is perhaps plain in these cases that there is a moral duty or obligation to do (or to remit) what the law requires, this duty should not be seen as equivalent to a duty to *obey* the law. I do not *obey* a military superior when I decide on completely independent grounds to do what

1 In this essay I will not be concerned with any differences between moral *duties* and moral *obligations*. I will assume that accounting for a general obligation to obey the law would be fully as satisfying to all of the relevant theorists as would accounting for a general duty to obey. On the differences between duties and obligations, see my *Moral Principles and Political Obligations* (Princeton, NJ: Princeton University Press, 1979), 11–16. On the idea of “external” duties or justifications, see my “External Justifications and Institutional Roles,” in *Justification and Legitimacy: Essays on Rights and Obligations* (Cambridge: Cambridge University Press, 2001).

he happens to have commanded (as when I retreat from mere prudence or cowardice at the same time that he happens to be ordering a retreat). Obedience essentially concerns the source of a rule or command, not its content. I obey my military superior's command to do C when I do C because he commands that I do C, not because I am independently inclined to do C. (These are the "surrender of judgment" and the "content independence" that subjection to authoritative commands is often said to involve.) A moral duty to obey the law would be a duty to do as the law requires *because* it is required by valid law (or because of what its being valid law implies), a duty to obey the law as such, not to do as it requires just insofar as it happens to overlap with independent moral duties (which should be discharged whether or not they are also made legal duties). Now I certainly do not intend to suggest, of course, that it is simply a coincidence that the law in many respects reflects the considered moral views of those from whom it demands obedience. But I do mean to emphasize that our question in this essay concerns the general moral authority of our laws, not just the extent to which law rides piggyback on prior and freestanding duties of morality.

Understanding in this way our question, "Is there a duty to obey the law?", we can see immediately that the answer is unlikely to be a simple "Yes." Any affirmative answer will certainly be heavily qualified. For not only do different legal systems differ in the specific legal duties they impose, different laws even within particular legal systems typically seem differentially morally binding. Few theorists would be inclined to defend a moral duty to obey laws requiring the capture and return of fugitive slaves or requiring that we provide information to the authorities that will send morally innocent persons to death camps, even if in other respects the legal systems that imposed such requirements were exemplary. More generally (and less dramatically), even legal systems that are quite just on balance typically include at least some laws with respect to which even the most convinced proponent of a general moral duty to obey the law will have some doubts. Some theorists are motivated by such cases to qualify their answers by asserting the existence of a *prima facie* duty to obey the

law, a duty that can be overridden in the case of intolerably unjust laws, or a tentative duty that is only *actually* a duty where such moral objections to law are not present.

But even if we accept this strategy, it still seems clear that any answer to our general question about a duty to obey the law will have to be loaded with caveats and qualifications. For not only are vile and deeply unjust systems of law not owed even a *prima facie* moral duty of obedience, even within generally just societies various persons are likely to stand in rather different moral relations to the law. Those who have without good cause suffered disproportionately the burdens imposed by unjust law, or those who have without cause been denied enjoyment of the benefits law provides (think, for instance, of minority groups in moderately biased societies or persons living in isolated or inadequately policed territories), may well have very different duties with respect to the law than do citizens in more normal or happier circumstances. Indeed, individuals could differ in their duties simply because of quite personal and idiosyncratic moral relationships into which they might have entered. (I might, say, have a moral duty to obey the law because I made a sincere promise to my mother that I would do so.) We are interested in answers to our question that are of sufficient generality to apply to many members of real societies while at the same time being sufficiently qualified and fine-grained so as to account for obvious facts about the morally relevant differences between both different kinds of legal systems and persons in different circumstances within particular societies. In attempting to answer our question, we will thus undoubtedly find ourselves often thinking about the answer only for certain kinds of (decent) legal systems and for most persons within communities governed by such systems.

"Is there a duty to obey the law?" is, of course, not only among the oldest and most enduring of philosophical questions, but a question that has continued to attract the attention of legal, social, and political philosophers. A wide variety of accounts of the nature and source of our duty to obey is currently on offer, with all such accounts opposed not only by proponents of alternative accounts, but also by an array of skeptics who deny the existence

(and, in some cases, even the possibility) of such duties. Academic lawyers and political scientists are as fully engaged in the debates as are philosophers. One explanation for this attention is that answers to questions about the duty to obey the law seem to have quite immediate practical implications for our everyday lives. These questions are one of the points at which political (and legal) philosophy makes its most obvious contact with the concerns of thoughtful laypersons. We may, for instance, care deeply about liberty or justice (about the division of property in our society, about its form of government and institutional means for resolving political differences, about the proper limits on individual liberty and the correct role for cultural identities, and so on); and we may care deeply as a result about the character of the laws and the political institutions under which we live. But we are seldom in a position, individually or in small groups, to have much effect on whether our laws and institutions live up to our cherished ideals. By contrast, we all face, individually and regularly, questions about whether to obey the law (and, by extension, whether to vote in elections, support our governments, demonstrate patriotic allegiance, and the like). These are all questions that are addressed, even if not necessarily fully resolved, by solutions to the problem of the duty to obey the law. Is it really wrong to break this law, even if I can easily escape punishment for the breach and even if nobody else will be obviously harmed by my disobedience? Is there really a moral duty not to exceed the speed limit or drive while intoxicated, not to cheat on our taxes or use illegal recreational substances, not to evade jury duty or registration for the military draft? Many persons, both within and without the academy, are plainly (and plainly ought to be) interested in such practical questions, if for no other reason than that most of us take our perceived moral duties and obligations at least reasonably seriously.²

2 Here I disagree with Allen Buchanan's claims that an account of "political authority," along with the correlative notion of an obligation to obey, is not important to the central issues of political philosophy (*Justice, Legitimacy, and Self-Determination* [Oxford: Oxford University Press, 2004], 237–41). At times

Much obedience to law (and support for domestic governments), of course, is motivated by fear of legal sanctions, by childhood training and habit, and by a variety of nonrational attachments to community, nation, or state. Both philosophers and laypersons, however, frequently aver that in addition to these prudential reasons and nonrational motivations to obey the law, there are rational moral grounds for demanding from them legal obedience. Indeed, I think it is likely true that most of us living in reasonably just societies believe that there is a general moral duty to comply with the requirements of valid domestic law (or at least would *say*, with appropriate prompting, that we believe in such a duty³). But even if most ordinary people do in fact feel duty-bound in this way, we should not be too hasty in taking such feelings as plainly justified (i.e., as accurately tracking our true moral duties) unless we can support those feelings by reference to some recognizable line of moral reasoning.

After all, people do sometimes feel morally required to act in ways that we surely cannot want to say reflect their actual moral duties – for example, the downtrodden poor man who feels

Buchanan seems to mean by this only that an account of a duty owed *to government* is unimportant, since he appears to regard as important the possibility of a duty owed to fellow citizens (ibid., 253–6). But if (as Locke thought and as I believe) a *people* can hold political authority, then a duty owed to fellow citizens *is* a duty that correlates with (their) political authority. At other times (e.g., 239–40), however, Buchanan (citing me) plainly wants to argue that since other kinds of moral, prudential, or personal reasons for legal compliance will exist regardless, demonstrating as well a duty to obey is simply unnecessary to reasonable concerns in political philosophy. This also seems to me false. While we may certainly often (though, just as certainly, not always) have reasons to comply independent of a duty to obey, it is the duty to obey that must be invoked to explain why it is morally wrong for us to compete with our authorities or to decline political association with those around us. (An account of why governments are simply justified in acting as they do – of the sort offered by Buchanan – will not suffice to explain this.) As we will see, it is on precisely these points that Natural Duty theories like Buchanan's founder.

- 3 Leslie Green raises reasonable doubts about whether such assertions of belief might in fact indicate rather different commitments than would at first seem to be the case. See "Who Believes in Political Obligation?" in W. A. Edmundson (ed.), *The Duty to Obey the Law* (Lanham, MD: Rowman & Littlefield, 1999).

duty-bound to defer to his social “betters” (or the black man who feels he must defer to whites) or the brainwashed political prisoner who is brought to feel duty-bound in exactly the ways his tormenters intended (or conditioned creatures of duty, analogous to those of Huxley’s *Brave New World*). Especially where relations of domination and subjection are at issue, as they certainly are in all organized political societies with functioning legal systems, we should be extremely wary of trying to defend judgments about moral duty by simple appeal to the feelings of the subjects – feelings of duty that may be straightforward components of “false consciousness” or perhaps just uncritically accepted sentiments of loyalty to the dominant authorities in one’s domain. While appeal to widely shared, thoughtfully considered, critically examined judgments of moral duty by ordinary persons may well be a defensible starting point in moral theorizing, it is plainly not defensible to begin by appealing to judgments that seem likely to be distorted in their genesis or development – for instance, by appealing to feelings that arose in circumstances that render those specific feelings inherently suspicious. I would contend that any “sense of duty” to law or polity that arises within the hierarchical, coercive framework of legal and political relations that characterizes the modern state cannot be regarded as safe from such reasonable suspicions. The clear instrumental value to political and legal superiors (and, more generally, to those enjoying positions of privilege) of an inculcated popular sense of duty to obey, along with the wide variety of means of inculcation available to leaders and to the privileged in modern states, are the obvious sources of such suspicions.

If, indeed, most people do regard themselves as subject to a moral duty to obey the law, then we would do well to let that be the first word in our inquiry, not the last, and to explore carefully the lines of argument that might lead us to view such judgments as well justified.⁴ Traditionally, of course, discussions of the moral

4 It is not, of course, uncommon, especially in social-scientific discussions of legitimacy, to try to characterize state legitimacy – and, presumably, citizens’ correlative duties to obey – precisely in terms of dominant attitudes toward

duty to obey the law have been deeply conservative in character. Their objective has been less to explore the question of *whether* such a duty exists than to try to explain or justify the dominant belief in the existence of such a duty, and they would have been viewed simply as failures had they concluded without proposing such an explanation or justification. My approach in this essay, as I have already suggested, will not be conservative in this way. Nor will it be guided by the traditional insistence on finding a “one size fits all” answer, either positive or negative. It might well turn out to be true (again, as suggested earlier) that even within a single reasonably just society, many persons have a moral duty to obey the law, while many others do not. Or it might be that typical citizens in familiar states have a moral duty to obey, but that this duty binds them more narrowly (or broadly) than they or their governments suppose. Or, of course, it might be that anarchists have been correct in insisting that all (possible or actual) citizens of all (possible or actual) states lack even a narrow moral duty to obey the law. In short, I will not regard my enterprise here as failed simply by virtue of its inability to confirm any of our pretheoretical beliefs on the subject of a duty to obey. These beliefs are not, in my view, sufficiently reliable to stand as data to which any respectable theory must conform. The only standard of success acknowledged in this essay will be that its conclusions should follow from good arguments.

Of course, if our conclusions challenge these pretheoretical beliefs about a duty to obey the law, they will inevitably challenge as well a variety of associated views about the nature of our relationships to our legal and political institutions. But they will, I think,

the state among citizens. On such accounts, legitimate authority is ascribed to states or regimes whose subjects feel toward them loyalty, allegiance, or other kinds of approval, or to states or regimes with the capacities to generate such feelings. But it is easy to see that this sort of account implies, implausibly, that states can acquire or enhance *legitimacy* by misleading or by indoctrinating their subjects, or on the strength of subjects’ extraordinary stupidity, immorality, or imprudence. Legitimacy and the duty to obey must surely turn not on the attitudes of subjects, but rather on facts about the state’s history, character, or relations with its subjects. See my “Justification and Legitimacy,” 131–5 (in *Justification and Legitimacy*).

challenge less dramatically than we might expect our normal understanding of when morality dictates conformity with law and political nonresistance. Since my coauthor, Christopher Wellman, takes issue specifically with this claim, however (taking me to have misconceived the relationship between political and philosophical anarchism), I will reserve my response on this subject for Chapter 8 (after we have examined Wellman's own views).

As my remarks thus far have suggested, in this essay I will argue against the existence of a widespread duty to obey the law, even in reasonably just political societies (like those in which most of my readers undoubtedly reside). My ultimate goal is to extend and solidify my previous defenses of the (philosophical anarchist's) view that the mere fact that an action is legally required or that a stable government holds power within a reasonably just state is insufficient to establish a moral presumption in favor of legal compliance. Because, however, I believe that no *a priori* arguments are available to demonstrate the *impossibility* of a duty to obey (indeed, I believe that small numbers of actual persons have such a duty), my case against a general duty to obey must proceed by showing how the various possible theories of the duty to obey either fail in their own terms or fail to apply to – that is, fail to explain or justify the alleged duties of – most real citizens of real states.

In a volume of this length, I cannot possibly deal in detail with all of the plausible or popular theories of the duty to obey the law. My strategy, accordingly, will be to focus on one prominent tradition of thought on the subject while offering relatively brief summaries of the arguments that seem to me to discredit rival accounts. The tradition on which I will concentrate is, I believe, the most influential among contemporary political and legal theorists: namely, (what I will call) the Natural Duty family of theories, which prominently includes Kant's theory, along with its contemporary neo-Kantian/Rawlsian offspring. That family (or tradition of thought) will be the subject of Chapter 7 of this essay. In Chapter 6, I will first briefly examine the other families of rival theories.